

6	23-01313302 <i>Carmona vs. Mazella New Tech Corporation</i>	1) Motion for Summary Judgment and/or Adjudication 2) Motion for Summary Judgment and/or Adjudication 3) Motion to Compel Answers to Form Interrogatories MOTION NO. 1: Defendant OC Metals, Inc.’s (“OC Metals”) motion for summary adjudication as to Plaintiff Oscar Carmona’s claims against OC Metals is DENIED in part and GRANTED in part. Defendant’s Evidentiary Objections to the Declaration of Glen Stevick are OVERRULED. (ROA 546.) Defendant’s Evidentiary Objections to the Declaration of Plaintiff are OVERRULED as to Objection Nos. 1, 3, and SUSTAINED as to Objection Nos. 2 and 4. (ROA 545.) Defendant’s Evidentiary Objections to the Declaration of Joshua Cohen Slatkin are OVERRULED as to Objection Nos. 1-8 and 13. (ROA 544.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. Defendant’s Evidentiary Objections to Plaintiff’s Compendium of Evidence are OVERRULED as to Objections Nos. 1, 8 and 9. (ROA 543.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. Defendant’s Evidentiary Objections to the Declaration of Stacy Rios are SUSTAINED as to Objection No. 1 and OVERRULED as to Objection No. 2. (ROA 542.) Defendant’s Evidentiary Objection to Declaration of Terry McGuire filed in support of defendant Mazzella New Tech Corporation’s (“Mazzella”) Opposition to the Motion are OVERRULED as to Objection Nos. 3 and 4. (ROA 552.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. The Court declines to rule on the remaining Evidentiary Objections filed by Defendant and Mazzella as not material to the disposition of the Motion. <u>ISSUE 1:</u> Plaintiff’s Second and Fourth Causes of Action against OC Metals are barred by California’s Worker’s Compensation Exclusivity Rule because the SSQ MultiPro is not a power press as defined by Labor Code section 4558. “The basic theory of workers’ compensation is that where the conditions of compensation exist, benefits under the workers’ compensation act provide the exclusive remedy against an employer for injuries sustained in the course of employment Section 3602, subdivision (a) provides that the only exceptions to this exclusive remedy doctrine are those specifically described in section 3602, subdivision (b), section 3706, and
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section 4558.” (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1132 (*Award Metals*).)

Here, Plaintiff alleges that the exception under Labor Code section 4558 known as the “power press” exception applies allowing him to bring his second and fourth causes of action against OC Metals outside of the workers’ compensation exclusivity rule.

Section 4558, subdivision (a)(4) defines a “power press” as “any material-forming machine that utilizes a die which is designed for use in the manufacture of other products.” (Lab. Code § 4558, subd. (a)(4).) Interpreting this definition, the California Supreme Court held that “[i]n defining a ‘power press,’ for purposes of section 4558, in terms of a ‘die,’ the Legislature patently intended to embody the characteristic that differentiates ‘press[es]’ from other ‘material-forming machines[s],’ i.e., the use of a tool that imparts shape to material by pressing or impacting against or through the material, that is, by punching, stamping or extruding.” (*Rosales v. Depuy Ace Medical Co.* (2000) 22 Cal.4th 279, 285 286.) The term “die” denotes a class of tools with two features, “First, they impart form to the material by impact or pressure against the material, rather than along the material. Second, they impart to the material some version of the die’s own shape. The two characteristics are logically related, since the die, acting by impact against the material, can only alter the form of the material where it impacts it, necessarily leaving an impression or cutout of its own shape (unlike a linear cutting blade that, moving along the surface of the material, can be directed to cut out any desired shape).” (*Id.* at pp. 284–85). “An injury caused by the operation of a machine that *could* operate as a power press, but was not so operating at the time of injury, would not be proximately caused by the employer’s removal of, or failure to install, a point of operation guard on a power press.” (*Id.* at pp. 287–88). “In summary, section 4558’s exemption from workers’ compensation exclusivity applies, by the statute’s own plain and express terms, only to material-forming machines utilizing a die; . . . machines using other types of tools [such as a blade] to cut material are not within the statute’s application, even if they would meet a regulatory agency’s definition of power press.” (*Id.* at p. 288).

Undisputed evidence shows Plaintiff was employed by defendants OC Metals and Cal Pac Sheet Metal Inc. as a metal fabricator on the date of the incident. (Defendant’s Undisputed Material Fact (“UMF”) No. 1.) Defendant contends on May 19, 2021, Plaintiff was using the SSQ MultiPro Quick Change – Commercial/Residential Roof Panel Machine (“SSQ MultiPro”) within the course and scope of his employment when he sustained personal injuries including a left-hand amputation. (UMF No. 2.) Plaintiff disputes the model and specific machine used at the time of the incident. Plaintiff has submitted evidence to show Defendant purchased the New Tech SSQ Quick Change Panel Machine- serial number 9090219- on or around February 23, 2019. (Response to UMF No. 2.) Based on this evidence, Plaintiff contends the subject machine on which he sustained a complete left-hand amputation was the New Tech SSQ II Quick Change Commercial/Residential Multi Pro Machine (“SSQ II”). (Response to UMF No. 2.) The parties have submitted conflicting

evidence as to the machine on which Plaintiff was injured, therefore, there is a triable issue of material fact as to whether the subject machine that was used at the time of injury was a SSQ MultiPro or a SSQ II.

As to Defendant's contention the SSQ MultiPro was not a power press, Defendant has shown Plaintiff severed his left-hand with a shear blade used to cut formed panels to their desired length at the exit end of the SSQ MultiPro. (UMF No. 6.) Defendant contends the shear blade imparted no shape or form to the roofing panel, i.e., "necessarily leaving an impression or cut out of its own shape," as required by the California Supreme Court to trigger the power press exception. (*Rosales*, supra, 22 Cal.4th at pp. 284-285; see also UMF No. 7.) Rather, the shear blade at issue here operates similarly to a pair of scissors and cuts after the roof panel has been formed. (UMF No. 8-10.) Therefore, Defendant argues the statutory definition of a power press under section 4558, subdivision (a)(4) is not satisfied.

Plaintiff disputes Defendant's evidence and has shown that Mazzella New Tech ("Mazella"), the manufacturer of the machine admitted in its Responses to Plaintiff's Requests for Admission that the subject machine fits the definition of a power press as defined and developed by case law, explaining that "[t]he subject machine forms metal by force through tools and dies and then is cut with the use of vertical shears." (Plaintiff's Response to UMF 7.) Further, Plaintiff has shown that SSQ II operates by inserting sheet metal on the entry end which is moved through the machine similar to a conveyor belt with a drive system which moves the sheet metal through the machine with 8 top and bottom drive rollers powered by a hydraulic motor which shape the sheet metal to the operator's specifications who is operating the machine with a manual control panel at the exit end of the Machine where the sheet metal is then cut to the desired length with the shear. (Plaintiff's Separate Statement of Disputed Material Facts, ("AMF") No. 5.) Plaintiff's expert, Dr. Glen Stevick also opines that the subject machine design, from an engineering standpoint, is consistent with the wording given in section 4558, subdivision (a)(4). (Stevick Decl., ¶ 24.) Even if the court were to find that there is no triable issue as to the machine that caused Plaintiff's injury and that the machine at issue was the SSQ MultiPro, Mazzella in support of its opposition has submitted a declaration of its Vice President who states the SSQ MultiPro utilizes multiple dies to impart shape to metal. Specifically, a sheet of metal passes the entry point of the machine (where the guard was originally located) and proceeds through a series of roller dies, located above and below the sheet metal. The roller dies impart shape to the metal via angular extrusion, thereby pressing against and impacting the metal, shaping it as it passes through each set of dies. (McGuire Decl., ¶ 7.) Plaintiff and Mazzella's evidence is sufficient to create a triable issue of material fact as to whether the SSQ II and/or SSQ MultiPro at issue is a power press. Specifically, Plaintiff has shown there are triable issues of material fact as to whether the shear blades are properly characterized as a die and whether they cut or impart shape. (*Islas v. D & G Manufacturing Co., Inc.* (2004) 120 Cal.App.4th 571, 579.) ["Generally, the application of a statutory term to a specific set of facts is a question of fact for the jury, unless the material facts are

undisputed and no conflicting inferences can reasonably be drawn from these facts.”]

Therefore, there are triable issues of material fact as to whether the machine that was used at the time of injury is a power press. Accordingly, summary adjudication of Issue 1 is DENIED.

ISSUE 2: Plaintiff’s Second And Fourth Causes of Action against Defendant OC Metals are barred by California’s Workers’ Compensation Exclusivity Rule set forth in Labor Code section 3600, subd. (a) because Defendant OC Metals never specifically authorized the knowing removal, or failure to install, a shear guard required or provided by Specification by the manufacturer of the SSQ MultiPro machine, which is a required element of Labor Code section 4558.

Section 4558, subdivision (b), provides: “An employee, or his or her dependents in the event of the employee’s death, may bring an action at law for damages against the employer where the employee’s injury or death is proximately caused by the employer’s knowing removal of, or knowing failure to install, a point of operation guard on a power press, and this removal or failure to install is specifically authorized by the employer under conditions known by the employer to create a probability of serious injury or death.” (Lab. Code § 4558, subd. (b).) Further, section 4558, subdivision (c) provides, “No liability shall arise under this section absent proof that the manufacturer designed, installed, required, or otherwise provided by specification for the attachment of the guards and conveyed knowledge of the same to the employer. Proof of conveyance of this information to the employer by the manufacturer may come from any source.” (Lab. Code § 4558, subd. (c).)

Here, Defendant has submitted evidence to show Mazzella manufactured and designed the SSQ MultiPro which was delivered to Defendants OC Metals and Cal Pac in 2019 assembled and without a shear guard attached. (UMF Nos. 11-13.) Neither Defendant OC Metals nor Defendant Cal Pac knowingly removed a shear guard from the SSQ MultiPro or knowingly failed to install a shear guard on the SSQ MultiPro prior to Plaintiff’s injury. (UMF Nos. 14-15.) Defendant has also submitted evidence to show neither Defendant OC Metals nor Defendant Cal Pac specifically authorized or gave any affirmative instruction to remove or not install a shear guard on the SSQ MultiPro prior to Plaintiff’s injury. (SSUF No. 16.) At no point prior to the Plaintiff’s injury did Mazzella the manufacturer of the SSQ MultiPro, inform Defendant OC Metals or Defendant Cal Pac of the requirement that a shear guard be installed on the SSQ MultiPro. (UMF No. 17.) There is no mention of any guard in the Specifications, Shear Assembly, Troubleshooting, or List of Figures (the schematics for each of the component parts of the SSQ MultiPro). (UMF Nos. 18-19.)

Plaintiff disputes Defendant’s evidence that it never authorized the knowing removal, or failure to install, a shear guard required or provided by Specification by the manufacturer. Plaintiff has submitted a declaration in which he states Defendants OC Metals and Cal Pac’s

employee, Colton Crocket, who trained Plaintiff to use the subject machine, after the incident, told Plaintiff the machine came with guards to guard the metal shear, and that the shear guards were removed and/or not installed before the incident. (Plaintiff's Decl., ¶ 6.) Plaintiff has also submitted the declaration of his domestic partner and fiancée who avers that she was told by the Safety Director of Defendants OC Metals and Cal Pac, Cathy Valadez, when they were at Defendant's location in Santa Ana, CA after the incident, that the machine came with a shear guard which was not installed at the time of the subject incident. (Rios Decl., ¶ 3.) Plaintiff has also submitted evidence to show the Operation and Maintenance Manual for SSQ II, in Chapter 9 entitled "SHEAR ASSEMBLY" that "The shear is extremely dangerous and can cause serious bodily injury or death. For this reason, the machine is provided with a guard to prevent the operator from reaching into the shear. It is very important that the guard remain in place at all times when the machine is in operation." (AMF No. 11.) Defendant contends Plaintiff cites to the wrong Operation and Maintenance Manual and the correct Manual which is for SSQ MultiPro which has none of the references cited by Plaintiff. To the extent, Defendant contends the subject machine was a SSQ MutiPro, Mazzella has submitted evidence to show the shear guard is part of the SSQ MultiPro and Mazzella does not sell the SSQ MultiPro without a shear guard. (McGuire Decl., ¶ 6.) Since there are triable issues as to the machine that caused Plaintiff's injury, there are also triable issues of material fact as to the applicable Operations and Maintenance Manual and whether the applicable manual specifies the use of the shear guard.

Accordingly, summary adjudication of Issue 2 is DENIED.

ISSUE 3: Plaintiff's Second Cause of Action for Negligence against Defendant OC Metals is barred as a matter of law by California's Worker's Compensation Exclusivity Rule set forth in Labor Code section 3600, subd. (a).

"Actionable negligence requires a legal duty to use due care, breach of that duty, and a proximate causal connection between the breach and the plaintiff's injuries. [Citation.] It does not require direct communication from a manufacturer to the employer regarding the risk involved, nor does it require that the employer specifically authorize the conduct with knowledge that such conduct would create a probability of serious injury or death, all as required under section 4558. Simple negligence thus requires a far lesser showing than that required under section 4558. It follows that a claim based on such negligence does not meet the standards for the power press exception to the exclusive remedy provisions of section 3602." (*Award Metals*, *supra*, 228 Cal.App.3d at p. 1134.)

Here, the second cause of action for Negligence alleges Defendant "negligently installed, inspected, tested, failed to test, and negligently assembled, serviced, maintained and modified the subject machine, and the component parts thereof." (Second Amended Complaint, ¶ 103.) These allegations do not meet the requirements for a violation of section 4558, therefore, Plaintiff's second cause of action for negligence is barred by the workers' compensation exclusivity rule.

Plaintiff's opposition does not address Issue No. 3. Accordingly, summary adjudication of Issue 3 is GRANTED.

ISSUE 4: Plaintiff's Second and Fourth Causes of Action against Defendant OC Metals are barred by the statute of limitations.

"Code of Civil Procedure section 474 permits plaintiffs to bring in defendants if the requirements of section 474 are met. If so, that defendant is considered a party to the action from its commencement." (*Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1169-1170.) "Code of Civil Procedure section 474 is to be liberally construed." (*Id.* at p. 1170.)

"Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against the defendant. [¶] Ignorance of the *facts* giving rise to a cause of action is the ignorance required by section 474, and the pivotal question is, did plaintiff know *facts*? not did plaintiff know or believe that he had a cause of action based on those facts? Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned and that a plaintiff need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance, it is equally true that the plaintiff does not relinquish his rights under section 474 simply because he has a suspicion of wrongdoing arising from one or more facts he does know." (*McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-72 [cleaned up].)

"[S]ection 474 includes an implicit requirement that a plaintiff may not 'unreasonably delay' his or her filing of a Doe amendment after learning a defendant's identity." (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1066-1067 (A.N.)) Unreasonable delay "includes a prejudice element, which requires a showing by the defendant that he or she would suffer prejudice from plaintiff's delay in filing the Doe amendment." (*Id.* at p. 1067.) However, "if the identity ignorance requirement of section 474 is not met, a new defendant may not be added after the statute of limitations has expired even if the new defendant cannot establish prejudice resulting from the delay." (*Woo v. Superior Ct.* (1999) 75 Cal. App. 4th 169, 177.)

"Section 474 allows a plaintiff in good faith to delay suing particular persons as named defendants until he has knowledge of sufficient facts to cause a reasonable person to believe liability is probable. The fact that the plaintiff had the means to obtain knowledge is irrelevant. In short, section 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading." (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 943-44 [cleaned up].)

Plaintiff has shown he filed his initial complaint on March 14, 2023 against the manufacturer defendant Mazella, which was within the applicable statute of limitations. (Slatkin Decl., ¶ 3.) On June 21, 2023, Michael Jenkins, counsel for Defendant Mazella, emailed Plaintiff's counsel a screen shot from the surveillance video depicting the incident along with relevant portions of the operations manual for the subject machine, specifically Chapter 9 regarding shear assembly and the shear guard. (Slatkin Decl., ¶ 4; Ex. 19.) Thereafter, Plaintiff filed a First Amended Complaint on October 9, 2023, alleging liability against the employer. (Slatkin Decl., ¶ 5.) Plaintiff then filed the operative SAC with a cause of action under section 4558 on April 19, 2024. (Slatkin Decl., ¶ 6.) Plaintiff has also shown he was truly "ignorant" of Defendants Cal Pac and OC Metals liability under section 4558 at the time the original complaint was filed because, although he knew the identity of the organizations that employed him, he was ignorant of the facts giving him a cause of action against them (that is, that they removed or failed to install a shear guard and that the device used dies in the manufacturer of other products). Plaintiff's counsel believed that the lack of a shear guard was not the result of a knowing removal or failure to install by the employers but rather was part of the design defect of the machine itself. (Slatkin Decl., ¶ 3.) Therefore, Plaintiff has shown the action is timely under the relation back doctrine.

Accordingly, summary adjudication of Issue 4 is DENIED.

Moving Defendant to give notice.

MOTION NO. 2:

Defendant Cal Pac Sheet Metal, Inc.'s ("Cal Pac") motion for summary adjudication as to Plaintiff Oscar Carmona's claims against Defendant are DENIED in part and GRANTED in part.

Defendant's Evidentiary Objections to the Declaration of Glen Stevick are OVERRULED. (ROA 507.)

Defendant's Evidentiary Objections to the Declaration of Plaintiff are OVERRULED as to Objection Nos. 1, 3, and SUSTAINED as to Objection Nos. 2 and 4. (ROA 504.)

Defendant's Evidentiary Objections to the Declaration of Joshua Cohen Slatkin is OVERRULED as to Objection Nos. 1-8, 13. (ROA 506.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

Defendant's Evidentiary Objections to Plaintiff's Compendium of Evidence is OVERRULED as to Objections Nos. 1, 8, 9. (ROA 508.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

Defendant's Evidentiary Objections to the Declaration of Stacy Rios is SUSTAINED as to Objection No. 1 and OVERRULED as to Objection No. 2. (ROA 505.)

Defendant's Evidentiary Objection to Declaration of Terry McGuire filed in support of defendant Mazzella New Tech Corporation's Opposition to the Motion is OVERRULED as to Objection Nos. 3 and 4. (ROA 486.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

The Court declines to rule on the remaining Evidentiary Objections filed by Defendant and Mazzella as not material to the disposition of the Motion.

ISSUE 1: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by California's workers' compensation exclusivity rule because the SSQ MultiPro is not a power press.

For the reasons discussed in OC Metals, Inc.'s ("OC Metals") motion for summary adjudication, summary adjudication of Issue 1 is DENIED.

ISSUE 2: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by California's workers' compensation exclusivity rule because Defendant Cal Pac never specifically authorized the knowing removal, or failure to install, a shear guard required or provided by specification by the manufacturer.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 2 is DENIED.

ISSUE 3: Plaintiff's second cause of action for negligence against Defendant Cal Pac is barred as a matter of law by California's workers' compensation exclusivity rule.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 3 is GRANTED.

ISSUE 4: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by the statute of limitations.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 4 is DENIED.

Moving Defendant to give notice.

MOTION NO. 3 [ROA 202]:

Defendant OC Metals, Inc.'s ("OC Metals") Motion to Compel defendant Mazzella New Tech Corporation ("Mazzella") to provide responses, without objections, to OC Metals Form Interrogatories (Set Two) and Special Interrogatories (Set Two) is TAKEN OFF CALENDAR.

On 6-2-26, the court GRANTED OC Metals' Motion. (ROA 339, p. 3.)

Moving Defendant to give notice.